

CONSTITUTION FOR LIFE IN CHRIST LUTHERAN CHURCH

of Cook County, Minnesota

PREAMBLE:

The Word of God requires that a Christian congregation shall conform to ~~this~~ the Divine Word in doctrine and practice. Since it is the will of our Lord Jesus Christ that His disciples both hear and proclaim the gospel to the world, we follow such Scriptural words as these:

Psalm 119:105 "Your Word is a lamp unto my feet and a light unto my path."

Matthew 28:18-20 "All authority has been given to Me in heaven and on earth. Go therefore and make disciples of all nations, baptizing them in the name of the Father, and of the Son, and of the Holy Spirit, teaching them to observe all things that I have commanded you; and lo, I am with you always, even to the end of the age."

2 Timothy 4:1-5 "I charge you therefore before God and the Lord Jesus Christ, who will judge the living and the dead at His appearing and His kingdom; Preach the Word! Be ready in season and out of season; Convince, rebuke, exhort with all long-suffering and teaching. For the time will come when they will not endure sound doctrine; but according to their own desires, because they have itching ears, they will heap for themselves teachers; and they will turn their ears away from the truth, and be turned aside to fables. But you be watchful in all things, endure afflictions, do the work of an evangelist, fulfill your ministry."

Acts 17:28 "for in Him we live and move and have our being."

1 Corinthians 14:40 "Let all things be done decently and in order."

We the members of Life in Christ Lutheran Church accept and subscribe to the following Constitution and Bylaws, in accordance with which all spiritual and material affairs of our congregation shall be governed.

ARTICLE I NAME

The name of this congregation shall be Life in Christ Lutheran Church of Cook County, Minnesota.

ARTICLE II PURPOSE

The purpose of this congregation shall be to preach and teach the Word of God and to rightly administer the Sacraments of Holy Baptism and Holy Communion. As such, this congregation shall be a religious organization established and maintained not for profit, but to promote the Christian religion and maintain the public ministry through the public and private administration of the means of grace in accordance with the confessional basis set forth in Article III below.

ARTICLE III. CONFESSIONAL BASIS

This congregation accepts without reservation:

- A. The Scriptures of the Old and New Testaments as the inspired and written Word of God and the only rule and norm of faith and practice; and
- B. The Symbolical Books of the Evangelical Lutheran Church as a true and accurate statement and exposition of the Word of God, which books include:

1. The three Ecumenical Creeds (being the Apostles' Creed, the Nicene Creed, and the Athanasian Creed);
2. The unaltered Augsburg Confession;
3. The Apology of the Augsburg Confession;
4. The Smalcald Articles;
5. The Large Catechism of Dr. Martin Luther;
6. The Small Catechism of Dr. Martin Luther; and
7. The Formula of Concord.

Only such hymns, prayers, and liturgies shall be used in the public services of this congregation and in all ministerial acts as conform to the Confessional Standard of this Article. Likewise, in all classes for instruction in Christian doctrine only such books shall be used as conform to the Standard.

ARTICLE IV. MEMBERSHIP

The membership of this congregation shall include Baptized Members, Communicant Members, Associate Members and Voting Members.

Baptized Members shall include all persons who have been baptized in the name of the Triune God and have been placed under the pastoral care of this congregation.

Communicant Members shall include those persons who are baptized and who have placed themselves under the

1 spiritual care of this congregation and have met the requirements of the congregation in the matter of Confirmation,
2 reaffirmation and profession of faith, or transfer from another Lutheran Church - Missouri Synod congregation. It
3 is expected that all Communicant Members shall faithfully seek the use of God's Word. It is further expected that
4 Communicant Members will seek to give evidence of a Christian faith through a Christian life by attending public
5 worship, celebrating Holy Baptism and frequently partaking of Holy Communion and by the contributions of their
6 time, talent and treasure as God has prospered them for the maintenance and extension of His church. All
7 Communicant Members shall agree to faithfully abide by this Constitution.
8 Associate Members shall include those whose membership is in another LCMS Congregation but whose position
9 in life places them in Cook County for extended periods of time. The congregation will work with these members
10 and their home congregation to provide pastoral care. Upon discussion with the pastor such members are invited to
11 partake of all rights and privileges of the congregation except the right to vote and hold office. We welcome their
12 presence and discussion at Voters Meetings.
13 Voting Members shall include Communicant Members who have attained the age of 18 years, have signed this
14 Constitution (as and if amended), and have attended at least two consecutive meetings of the Voting Members.

15 ARTICLE V. AUTHORITY OF THE CONGREGATION

16 The authority of this congregation is vested in its Voting Members. Accordingly, no arrangement or decision,
17 though proceeding from a member or a group of members in the congregation, shall be valid unless made in the name
18 of the congregation and in accordance with the powers delegated by the Voting Members. The Voting Members shall
19 receive into their number Communicant Members who wish to become Voting Members and who qualify as Voting
20 Members in accordance with Article IV above. The Voting Members shall retain the authority to remove
21 Communicant Members who fail to meet the standards for Communicant Members as set forth in said Article IV and,
22 if appropriate and in accordance with Scripture, discipline and even excommunicate Communicant Members. The
23 Voting Members shall retain and not delegate the authority of the congregation to call Pastors, teachers or other
24 personnel eligible to receive a call. The Voting Members shall also retain and not delegate the authority to elect
25 officers of the congregation. Any action by the Voting Members to remove a called person from his or her office shall
26 be in accordance with the applicable provisions of the Bylaws and shall be consistent with applicable Scriptural
27 principles.

28 ARTICLE VI. AFFILIATION

29 This congregation shall be a member of The Lutheran Church-Missouri Synod and its Minnesota North District.
30 Such affiliation shall continue as long as the Synod and District conform to the congregation's confessional basis as
31 set forth in Article III above. As a member of Synod it shall send its pastor and a lay-delegate to the District
32 convention of Synod, and support the work of Synod.

33 ARTICLE VII. OFFICE OF PASTOR

34 There shall exist within this congregation the office of pastor also known as the office of public ministry. Said
35 office shall be conferred only on such pastor or candidate who professes and adheres to the confessional basis of this
36 congregation as set forth in Article III above, who is qualified for his work, who has been certified by The Lutheran
37 Church-Missouri Synod, and who is or will become a member of said Synod.

38 ARTICLE VIII. OFFICERS AND ADMINISTRATION

39 The officers and boards or committees of this congregation shall be those specifically set forth in the Bylaws as
40 and after the same are adopted by the Voting Members. In the meantime, the affairs of this congregation shall be
41 supervised and directed by an Operating Board consisting of 7 members, elected by the Voting Members of the
42 congregation and officially serving as the Trustees of the congregation. For such period of time as the Operating
43 Board is in existence, the term of office of the Board members shall be 1 year. The Voting Members shall elect or
44 reelect members and there shall be no limit on the years of service as a member of said Board. If any Board member
45 resigns his or her position, the Voting Members shall elect a replacement member who shall serve the balance of the
46 vacated term.

47 The Operating Board shall be responsible for drafting Bylaws for consideration by the Voting Members of the
48 congregation. It is expected that proposed Bylaws be presented for action by the Voting Members within 1 year of
49 the adoption of this Constitution. The Bylaws shall include consideration of the following topics:

- 50 A. Meetings of Voting Members and business to be conducted;
- 51 B. Designation and description of officers, boards, councils, and committees and the terms thereof;
- 52 C. Procedures for nominations, elections and calls;
- 53 D. Discipline and removal from office; and
- 54 E. Amendments.

55 The Bylaws shall be adopted by the Voting Members at a meeting called for such purpose providing that said
56 meeting was advertized on two prior Sundays. A simple majority vote of the Voting Members present and voting
57 shall be required for adoption of all Bylaws. The Bylaws (and any amendments thereto) shall also be presented to

Minnesota North District or such District of The Lutheran Church-Missouri Synod of which the congregation is then a member, for its approval. At such time as the Bylaws are adopted by the Voting Members and approved by the District, and following the election of officers per the approved Bylaws, the Operating Board shall automatically be dissolved and this Article VIII shall have no further effect.

ARTICLE IX. DIVISION

If a division of the Communicant members should occur on account of doctrine or practice, the property of the congregation (including the benefits connected therewith) and the authority of, the congregation shall remain with those Communicant members who continue to adhere in confession and practice to the confessional basis set forth in Article III above as determined in accordance with the dispute resolution procedures of the Synod then in effect. If division takes place for any reason other than doctrine or practice, the property (including the benefits connected therewith) and the authority of the congregation shall remain with those Voting Members who represent a majority provided, however, that said majority continues to adhere in confession and practice to the confessional basis set forth in Article III above. Any such dispute shall be resolved in accordance with the dispute resolution procedures of the Synod then in effect.

In the event this congregation dissolves, the property and all rights connected therewith shall be transferred to the Minnesota North District or such District of The Lutheran Church- Missouri Synod of which the congregation is then a member.

ARTICLE X. BYLAWS AND AMENDMENTS

As set forth in Article VIII above, this congregation shall adopt Bylaws. Said Bylaws may be amended in accordance with whatever provisions for amendment are provided for in the Bylaws.

This Constitution may be amended by the Voting Members of the congregation at either a regular Voters' meeting or a special Voters' meeting called for that purpose provided, however, that the proposed amendment(s) does(do) not conflict with the provisions laid down in Articles II and III of this Constitution and provided further that the proposed Amendment(s) has(have) been submitted to the previous meeting of the Voting Members. The affirmative vote of a 2/3rds majority of the Voting Members present and voting at the meeting shall be required for adoption of any amendment(s).

THE BYLAWS

A. MEETINGS OF VOTING MEMBERS AND BUSINESS TO BE CONDUCTED;

MEETING DATES: Meetings of voting members should be held each quarter of the calendar year on the Sunday following the end of the previous quarter. Additional meetings should be scheduled for the purpose of budget review and election of officers or as deemed necessary to conduct the business of the congregation.

DECISIONS: Matters of doctrine and conscience shall be decided by the Word of God; other matters shall be decided by the Voters Meeting by a majority vote unless otherwise specified in the Constitution and Bylaws.

Robert's Rules of Order shall prevail for the purpose of order .

ORDER OF BUSINESS The following order of business shall be employed at the regular Voters Meetings:

1. Devotion
2. Roll Call
3. Reading of Minutes
4. Admission of new members & granting of transfers
5. Pastor's Report
6. Reports of Officers and Boards
7. Unfinished Business
8. New Business
9. Adjournment with Prayer.

B. DESIGNATION AND DESCRIPTION OF OFFICERS, BOARDS, COUNCILS, AND COMMITTEES AND THE TERMS THEREOF;

ELECTION OF OFFICERS: ELECTION OF OFFICERS

The election of officers of the congregation shall take place in the last quarterly meeting of the year. Only such can be elected officers of the congregation who have been voting members of the congregation for at least one year as defined in the constitution. Officers shall be elected for the terms specified in these Bylaws and shall hold office until their successors have been elected and have qualified. Officers shall be permitted to hold the same office for two consecutive terms only.

The following officers shall be elected at the last regular voters meeting of the calendar year. They shall include:

- 1 President, a male, for a term of two years on alternating years with the election of Vice- president
2 Vice-president, a male, for a term of two years on alternating years with the election of President
3 Secretary, for a term of one year
4 4. Treasurer, for a term of three years
5 5. 2 Elder(s), males, for a term of three years
6 6. Trustee(s), for a term of three years.

7 The congregation shall elect or appoint such standing and special committees as its needs demand and shall determine
8 the terms of service as it deems suitable.

9 **DUTIES OF OFFICERS**

10 **1. DUTIES OF PRESIDENT AND VICE-PRESIDENT:**

11 The President shall preside at all meetings of the voters. In his absence the vice-president shall perform the duties
12 of the office. In the event of a vacancy in the office of president the vice-president shall succeed to the office
13 of president for the remainder of the term.

14 **2. DUTIES OF SECRETARY.**

15 The secretary shall keep accurate minutes of the Voters Meetings <and of the Church Council meetings> for the
16 permanent records of the congregation. And shall perform other duties in keeping with his office.

17 **3. DUTIES OF TREASURER.**

18 The treasurer shall receive and keep in trust all moneys. He shall pay all bills authorized by the congregation. He
19 shall keep accurate records of all the receipts and disbursements of the congregation in books furnished by
20 the congregation, which shall remain the property of the congregation. These books shall be audited annually
21 and a report of such audit shall be submitted to the congregation. The treasurer shall submit a report to
22 <each Council Meeting and> each Voters Meeting.

23 **4. DUTIES OF ELDER(S).**

24 The elder(s) shall

- 25 a) Assist the pastor in all matters pertaining to the spiritual welfare of the congregation, and work with
26 him for a God-pleasing solution in difficult congregational problems.
27 b) Assist the pastor in arranging for pulpit help, special services, guest speakers, etc.
28 c) Supervise the ushers.
29 d) Appoint organists for the church services.
30 e) Assist the Pastor in the areas of Christian Education and youth.

31 **5. DUTIES OF TRUSTEE(S)**

32 The Trustee(s) shall

- 33 a) Manage the property of the congregation.
34 b) See to it that the property is kept in good repair and in good appearance.
35 c) Administer the secular affairs of the congregation according to instructions received from the
36 congregation, and represent the congregation in all legal matters.

37 **C. PROCEDURES FOR NOMINATIONS, ELECTIONS AND CALLS;**

38 **39 CALLING OF PASTORS AND TEACHERS**

40 At a Voters Meeting properly convened, the list of qualified candidates from the District President shall be
41 presented. Any voter is then entitled to make additional nominations from the floor. After more than one candidate
42 has been unanimously nominated, the Triune God is to be implored for guidance, and a vote taken by ballot. The
43 candidate receiving the majority of all votes cast shall be considered elected. The election shall, if possible, be made
44 unanimous by a rising vote. When a candidate has been elected in the manner above indicated, the congregation shall
45 send him a proper written call, which shall be signed by the officers of the congregation.

46 **D. DISCIPLINE AND REMOVAL FROM OFFICE;**

47 **REMOVAL FROM OFFICE:**

48 Any officer, pastor, or teacher may be removed from office by the congregation, by ballot, in Christian and lawful
49 order for any one of the following causes: Persistent adherence to false doctrine, ungodly life, inability to perform
50 his official duties or willful neglect of them.

51 **E. AMENDMENTS.**

52 **Post Script:** Adopted: 7/28/2002 - *Signator List is on file in the Church Office.* Revised: 11/10/2002

53 - *District suggested revisions are on file in the Church Office or are shown above with (deletions =*

54 *<light grey> ; additions = **Bold**).*